IN THE SUPREME COURT
STATE OF GEORGIA

CHARLES CLARK et al.,
Appellants,

v.

THOMAS B. LEIGH, M.D. et al.
Appellees.

Case No. S26A0349

Lower Court Case No.
20SCCV091967 (Bibb State Court)

BRIEF OF APPELLANTS

Darren Summerville
Georgia Bar No. 691978
Elizabeth Stone
Georgia Bar No. 684098
THE SUMMERVILLE FIRM
1226 Ponce de Leon Avenue NE
Atlanta, Georgia 30306
T: (*770*) *635-0030*
darren@summervillefirm.com

Laura M. Shamp
Georgia Bar No. 637560
Joshua F. Silk
Georgia Bar No. 903916
SHAMP SILK
1718 Peachtree Street, Suite 900
Atlanta, Georgia 30309
T: (*404*) *893-9400*
shamp@shampsilk.com

TABLE OF CONTENTS

I. INTRODUCTION 1

A. Case Summary 1

B. Jurisdiction 3

C. Enumeration of Errors 4

D. Statement of the Case 4

E. Summary of Argument 7

II. ARGUMENT AND CITATION TO AUTHORITIES 8

A. Georgia's noneconomic damages "cap" – generally, and in light of Nestlehutt 8

CONCLUSION 10

TABLE OF AUTHORITIES

CASES

Atlanta Oculoplastic Surgery, P.C. v. Nestlehutt, 286 Ga. 731 (2010) — 2, 3, 7, 8, 9
Bibbs v. Toyota Motor Corp., 304 Ga. 68 (2018) — 10
City of Atlanta v. Watson, 267 Ga. 185 (1996) — 9
Ga. Dep't of Human Res. v. Phillips, 268 Ga. 316 (1997) — 7
Med. Ctr. of Cent. Ga., Inc. v. Turner, 322 Ga. 129 (2025) — 3, 7, 8

STATUTES

O.C.G.A. § 5-6-34 — 3
O.C.G.A. § 5-6-38 — 4
O.C.G.A. § 51-13-1 — passim
O.C.G.A. § 51-4-1 — 6, 7, 10

CONSTITUTIONAL PROVISIONS

Ga. Const. of 1983, Art. VI, Sec. VI, Par. II(1) — 3
Ga. Const. art. I, § I, ¶ II — 8

I. INTRODUCTION

A. Case Summary

Though centering on purely legal issues, this appeal arises from the wrongful death of April Clark, as a result of medical negligence committed by the various Defendants/Appellees – Thomas B. Leigh, M.D.; William Shirley, M.D., and OB/GYN Specialists, LLC.[1] The underlying litigation resulted in a multimillion-dollar award for the full value of Ms. Clark's life. Facing that hefty judgment, Defendants for the first time then claimed that Clark's noneconomic damages should be capped under O.C.G.A. § 51-13-1, the State's "medical malpractice damages cap."

Buying into that argument, the trial court invalidated the largest portion of the jury's award, "capping" the wrongful death verdict at $350,000 under the Cap Statute. There were several problems with that approach.

On purely procedural grounds, the Defendants waived the cap issue not only by failing to so much as mention it until after the trial, verdict and judgment, but also by affirmatively stating in the Pretrial Order that the measure of damages for any wrongful death claim was the "full value of the life" of Ms. Clark, as determined by the enlightened conscience of a reasonable jury. The trial, of course, was conducted in reliance on the Pretrial Order, and so the evidence that Clark introduced, and the strategic choices

[1]For purposes of this appeal, there is no real need to distinguish between the Defendants, so the generic will be used, for readability's sake.

her counsel made before and during trial, were premised on the "rules of engagement" laid out in that Order.

Substantively, the statute as currently written leaves no room for a standalone "cap" on wrongful death damages in medical malpractice cases, much less one that survives constitutional muster. Since this Court, in *Atlanta Oculoplastic Surgery, P.C. v. Nestlehutt*, 286 Ga. 731 (2010), invalidated vast swaths of the "cap" – specifically, as to pain and suffering and consortium claims – the remaining portions of the statute cannot operate without violating the severability clause of the tort reform legislation of which the "cap" is a part and contravening the clear intent of the General Assembly in passing the omnibus cap. And even if some semblance of a wrongful death cap could be cobbled together in the wake of *Nestlehutt*, the end result would be constitutionally infirm for reasons different than those espoused in *Nestlehutt*.

At base, the trial court upheld a "cap" that no Court, plaintiff, litigant, scholar, or citizen appeared to have believed existed in the wake of *Nestlehutt*, for the better part of two decades. The General Assembly might wish to pick up the issue using a new pen, on a blank slate, but that is for another day. What the cap is, now, is void and unconstitutional, and the trial court erred in finding otherwise.

B. Jurisdiction

This appeal is timely, as the rulings below – following a full trial and months of post-trial motions practice – resulted in a final judgment, suitable for appeal. O.C.G.A. § 5-6-34(a)(1)(B); see V1 1-2 (Plaintiff's Notice of Appeal).

Appeal to this Court is proper, as this Court exercises exclusive appellate jurisdiction over "[a]ll cases involving the construction . . . of the Constitution of the State of Georgia or of the United States and all cases in which the constitutionality of a law, ordinance, or constitutional provision has been drawn in question." Ga. Const. of 1983, Art. VI, Sec. VI, Par. II(1).

Here, the Trial Court's Amended Judgment (and underlying Order) squarely addressed and ruled upon the constitutionality of O.C.G.A. § 51-13-1. V26 149-53 (jury trial right); 153-54 (separation of powers); 154-55 (equal protection); see V26 158-59 (Amended Judgment). The constitutionality of the wrongful death portion of the "cap" statute has not been previously ruled on by this Court. *Med. Ctr. of Cent. Ga., Inc. v. Turner*, 322 Ga. 129 (June 24, 2025) (remanding, declining to reach the constitutionality of the damages cap to wrongful death award); see generally *Nestlehutt*, supra.

The trial court's Amended Judgment was entered on August 14, 2025. V26 158-59; see V26 147 (Order granting Motion to Remit, filed August 13, 2025). Clark's Notice of Appeal was filed the next day, timely under O.C.G.A.

§ 5-6-38(a). This appeal was docketed on October 15, 2025, and this initial brief follows within twenty days of that date.

C. Enumeration of Errors

The trial court erred in enforcing the "cap" on wrongful death damages under O.C.G.A. § 51-13-1.

1. The trial court erred in determining that Defendants had not waived the right to assert the "cap."
2. The trial court erred in concluding that it could enforce the "cap" as to wrongful death claims without effectively rewriting the statute—in violation of the constitutional separation of powers and general severability principles.
3. The trial court erred in concluding that enforcing the "cap" as to wrongful death claims would not violate the right to trial by jury.
4. The trial court erred in concluding that enforcing a "cap" as to wrongful death claims would not violate equal protection guarantees.

D. Statement of the Case

Though most of the "medicine" and trial proceedings are more germane to the companion appeal, S26X0349, a brief recap is necessary given some of Clark's procedural arguments, which the trial court misconstrued.

Underlying Facts

In 2019, April Clark underwent abdominal surgery to remove a cyst on her ovary; her surgeons that day were Defendants Leigh and Shirley. Though

initially planned as an outpatient procedure, Clark was held overnight at the hospital for observation. Her condition worsened and by the following afternoon she developed classic signs of a bowel perforation – fever, tachycardia (rapid heart rate), pain, and a distended abdomen. Both Dr. Leigh and Dr. Shirley had the opportunity to diagnose her deteriorating condition, and both failed to do so.

About 48 hours after her surgery, Clark suddenly became unresponsive. CT imaging revealed the presence of "free air" in Clark's abdomen – a classic sign of bowel perforation and red flag for sepsis. She underwent emergency surgery to repair the bowel leak, and her heart stopped while she was on the operating table. Clark never regained consciousness. V23 33, 45. She remained on life support for 31 days, and died on June 27, 2019. *Id.*

Relevant Proceedings

Litigation followed. Clark's family members brought claims for wrongful death: her surviving husband, Charles, as the statutory wrongful death plaintiff, and her daughter, April, as Administrator of the Estate, for conscious pain and suffering and medical bills. V1 6 (original Complaint).

After years of litigation, in which the "cap" issue was never raised, the case convened for trial in 2024. See generally Volumes 21-25 (Days I-V of trial). By that point, three separate Consolidated Pre-Trial Orders had been submitted and entered by the court. None mentioned any "cap," at all. V13 157-93 (PTO of May 21, 2024); *id.* 305-27 (PTO of July 18, 2024); V20 33-55.

In fact, in each PTO, these Defendants explained that the proper measure of damages for any wrongful death claim was indeed governed by statute – but not the "cap" statute they now champion. Instead, in each PTO, these Defendants agreed that "should the jury find in favor of plaintiffs, the applicable damages would be those damages appropriate pursuant to OCGA § 51-4-1 and OCGA § 51-12-2." V13 173; V13 315 (same); V20 43 (same; operative PTO).

After a five-day trial – including a full day's worth of "damages" witnesses – the jury deliberated for some time and ultimately, unanimously, awarded a significant verdict: $29,250,000 for the full value of the life of Ms. Clark;[2] $2,500,000 for the pain and suffering of Ms. Clark; and $1,715,176 in medical expenses. V25 at 1003-04; V20 74-75 (verdict form). In total, $33,465,716.[3]

Following apportionment to non-parties, the verdict was still north of $20 million. V20 76-77 (Judgment).

The Relevant Order

The trial court's Order straightforwardly, but incorrectly, held that the post-Nestlehutt remnants of O.C.G.A. § 51-13-1(b) capped the wrongful death

[2]According to the evidence, including mortality tables, at the time of her unnecessary death, April Clark had more than 33 remaining years of life as a wife, mother and grandmother. V25 110-13.

[3]The New Trial Motion ruling was ultimately reduced to a separate Order, in Clark's favor. That ruling gives rise to a cross-appeal, *Thomas B. Leigh, M.D. et al. v. Charles Clark*, Case No. S26X0350. The arguments raised and ruled upon as part of the New Trial Motion will be addressed in that proceeding, via separate briefing.

award. V26 148. Noting that this Court's decision in *Turner* meant that the "wrongful death cap" issue was still an open one, the trial court proceeded without significant elaboration to reject Clark's procedural and constitutional claims. V26 149-53 (jury trial right); 153-54 (separation of powers); 154-55 (equal protection); 155-57 (procedural objections). Perhaps most notably, the trial court ruled that since the cap statute "as applied" would pass constitutional muster, it need not engage in any more painstaking redline/ blue pencil of what portions of the statute were even in play.

E. Summary of Argument

The trial court erred in enforcing the § 51-13-1(b) "cap" in this case.

First, the "cap" argument was waived – the contention that the death of April Clark could only ever be worth $350,000 was never mentioned – not one syllable – until after the litigation, trial, verdict, and Judgment. Even more telling, the Defendants affirmatively took the position in multiple Pre-Trial Orders that another statute would govern Plaintiff's damages – the "full value of the life" standard memorialized in O.C.G.A. § 51-4-1 *et seq.*; see *Ga. Dep't of Human Res. v. Phillips*, 268 Ga. 316, 318 (1997).

Second, application of the "cap" as construed by the trial court is impossible, in light of *Nestlehutt*, under longstanding separation-of-powers principles, which forbid courts from rewriting or "adding a line" to a given statute. The trial court's enforcement of the "cap" post-*Nestlehutt* also

contravenes the severability provision of the Tort Reform Act of 2005, of which § 51-13-1 is a part.

Third, application of the "cap" would violate the inviolate right to a trial by jury under Georgia's Constitution, whether utilizing Georgia's 1798 version examined in *Nestlehutt* and *Turner*, the post-Civil War 1868 Constitution, or Georgia's current (1983) version. Actions for wrongful death did exist at common law, as did jury deliberation on damages almost precisely like those at issue, here. Caps are unconstitutional.

Fourth, application of the "cap" via some post-*Nestlehutt* rewriting would violate the Georgia and United States Constitutional guarantees of equal protection of the laws. See GA. CONST. art. I, § I, ¶ II ("Protection to person and property is the paramount duty of government and shall be impartial and complete. No person shall be denied the equal protection of the laws"). The trial court erred in ruling otherwise.

II. ARGUMENT AND CITATION TO AUTHORITIES

A. Georgia's noneconomic damages "cap" – generally, and in light of Nestlehutt

The Court is well aware that the "cap" statute was adopted in 2005, and held largely unconstitutional in *Nestlehutt* five years later. Since then, there has been no trial court ruling or appellate decision holding that whatever language or vestige remains of O.C.G.A. § 51-13-1 still caps wrongful death

awards in medical malpractice actions. There are numerous reasons why, to be explored below.

But first, in any dispute over statutory language, a good starting point is, well, the statute. The cap applies to any "claimant," which (though singular) means any and all persons who might claim damages from malpractice involving a single victim. O.C.G.A. § 51-13-1(a)(1) ("All persons claiming to have sustained damages as the result of the bodily injury or death of a single person are considered a single claimant") (emphasis added). That means in this matter, both Mr. Clark (wrongful death plaintiff, supposedly "capped") and April Clark (Estate representative, whose damages, under *Nestlehutt*, are not subject to any cap) are the same claimant.

The Defendants have asked the trial court to imagine reasons why Plaintiffs are different than others that might be entitled to uncapped awards of damages. But that is not what the General Assembly did. Under the rational-basis test, it is the "classification drawn by the legislation" – not by lawyers for defendants after the fact – that matters. *City of Atlanta v. Watson*, 267 Ga. 185, 187 (1996) (emphasis added).

At base, Code Section 51-13-1 doesn't draw any classification or distinction between damages for pain and suffering and damages for wrongful death. None; in fact, the opposite. Such a classification defies common sense, and precedent of this Court, which establishes that the type of damages in

wrongful death cases is functionally the same as in injury cases brought by an injured party that happens to survive. See, e.g., *Bibbs v. Toyota Motor Corp.*, 304 Ga. 68, 75 (2018) ("[T]he sorts of damages recoverable in wrongful death actions are substantially the same as the kinds of damages that may be recovered in personal injury actions.") (cleaned up, emphasis added). If that is indeed the case (as this Court has pronounced), then any wrongful-death only cap is irrational and violative of Georgia's constitutional equal protection framework.

CONCLUSION

The trial court's resurrection of the Cap Statute was procedurally barred and constitutionally infirm. This Court should reverse and reinstate the unanimous jury award under O.C.G.A. § 51-4-1 *et seq.*, the statute that the Defendants themselves conceded would apply to any jury award, here.

This submission does not exceed the word-count limit imposed by Rule 20.

Respectfully submitted, this 4th day of November, 2025.

/s/ Darren Summerville
Darren Summerville
Georgia Bar No. 691978
Elizabeth Stone
Georgia Bar No. 684098
THE SUMMERVILLE FIRM, LLC
1226 Ponce de Leon Avenue
Atlanta, Georgia 30306
(770) 635.0030
darren@summervillefirm.com
elizabeth@summervillefirm.com
Counsel for Appellants

/s/ Laura M. Shamp
Laura M. Shamp
Georgia Bar No. 637560
Joshua F. Silk
Georgia Bar No. 903916
SHAMP SILK
1718 Peachtree Street, Suite 900
Atlanta, Georgia 30309
T: (404) 893-9400
shamp@shampsilk.com
silk@shampsilk.com
Counsel for Appellants

CERTIFICATE OF SERVICE

I certify that there is a prior agreement with counsel to allow documents in a PDF format sent via e-mail to suffice for service under Supreme Court Rule 14. I further certify that I have on this day served true and correct copies of the foregoing upon the following counsel of record via e-mail:

David N. Nelson, Esq.
Elizabeth L. Ford, Esq.
CHAMBLESS, HIGDON, RICHARDSON, KATZ & GRIGGS, LLP
P.O. Box 18086
Macon, Georgia 31209
Attorneys for Appellees

R. Page Powell, Jr., Esq.
Alexander C. Vey, Esq.
HUFF, POWELL & BAILEY, LLC
999 Peachtree Street, Suite 950
Atlanta, Georgia 30309
Attorneys for Appellees

Respectfully submitted, this 4th day of November, 2025.

/s/ Darren Summerville
Darren Summerville
Georgia Bar No. 691978
Elizabeth Stone
Georgia Bar No. 684098
THE SUMMERVILLE FIRM, LLC
1226 Ponce de Leon Avenue
Atlanta, Georgia 30306
(770) 635.0030
darren@summervillefirm.com
elizabeth@summervillefirm.com
Counsel for Appellants

/s/ Laura M. Shamp
Laura M. Shamp
Georgia Bar No. 637560
Joshua F. Silk
Georgia Bar No. 903916
SHAMP SILK
1718 Peachtree Street, Suite 900
Atlanta, Georgia 30309
T: (404) 893-9400
shamp@shampsilk.com
silk@shampsilk.com
Counsel for Appellants